



CHAPTER clxxxiii.

An Act to confer upon the Corporation of the borough of Ealing further powers with respect to their electric lighting undertaking and with respect to the regulation of streets and buildings sanitary matters recreation grounds and milk supply and to vest in the Corporation the appointment of collectors of poor rates and for other purposes. A.D. 1905.
[4th August 1905.]

WHEREAS the borough of Ealing in the county of Middlesex (in this Act referred to as "the borough") is a municipal borough under the government for municipal and sanitary purposes of the mayor aldermen and burgesses of the borough (in this Act referred to as "the Corporation"):

And whereas by the Ealing Electric Lighting Order 1891 made by the Board of Trade and confirmed by Parliament the Corporation are authorised to supply and are now supplying electric energy within the borough and it is expedient to confer on them further powers with respect to their electrical undertaking:

And whereas the population of the borough is estimated to be upwards of forty thousand and is rapidly increasing owing to its proximity to the metropolis and other causes:

And whereas houses are being erected within the borough at the rate of about eight hundred per annum and it is desirable to confer on the Corporation further powers for the regulation of streets and buildings sanitary matters and recreation grounds and also for the protection of the milk supply within the borough:

And whereas it is expedient to make further provision for the collection of rates within the borough:

A.D. 1905.

And whereas it is expedient to confer on the Corporation such powers of borrowing money and such other powers as are in this Act contained :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

And whereas an absolute majority of the whole number of the council at a meeting held on the third day of November one thousand nine hundred and four after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Middlesex County Times and Ealing and Hanwell Post a local newspaper published or circulating in the borough such notice being in addition to the ordinary notices required for summoning such meeting resolved that the costs and expenses of promoting the Bill for this Act should be charged on the borough fund :

And whereas such resolution was published twice in the Middlesex County Times and Ealing and Hanwell Post a local newspaper circulating in the borough and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the ninth day of February one thousand nine hundred and five being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule of the Borough Funds Act 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Ealing Corporation Act 1905.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Electricity.

Part III.—Streets and Buildings.

A.D. 1905.

Part IV.—Sewers Drains and Closet Accommodation.

Part V.—Sky Signs and Hoardings.

Part VI.—Sanitary Regulations.

Part VII.—Milk Supply.

Part VIII.—Recreation Grounds and the Commons.

Part IX.—Collection of Rates.

Part X.—Finance.

Part XI.—Miscellaneous.

3. This Act except where otherwise expressly provided applies exclusively within the borough. Limits of Act.

4. In this Act unless the subject or context otherwise requires the following expressions have the following meanings (that is to say):— Interpretation.

“The town clerk” and “the borough surveyor” respectively mean the town clerk and the surveyor of the borough;

“The medical officer of health” means the medical officer of health of the borough including any person duly authorised to act temporarily as medical officer of health;

“The electric lighting undertaking” means the electric lighting undertaking of the Corporation;

“Electric line” has the same meaning as in the Electric Lighting Act 1882;

“The prescribed width” in relation to the width of any street means the width of any street prescribed by any Act or byelaw relating to streets for the time being in force in the borough;

“External wall” means an outer wall or vertical enclosure of any building not being a party wall;

“Closet accommodation” means any receptacle for human excreta and the fittings and apparatus connected therewith;

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the borough;

“Daily penalty” means a penalty for each day on which any offence is continued after conviction thereof;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust

A.D. 1905.
—

money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation ;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or reborrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government Department made or given or to be made or given by authority of any Act of Parliament passed or to be passed ;

Subject to the special definitions herein contained words to which meanings are assigned in the Public Health Act 1875 have in this Act the same respective meanings unless there be something in the subject or context repugnant to such construction.

PART II.

ELECTRICITY.

Attachment
of brackets
to buildings
&c. for light-
ing.

5. The Corporation may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required for lighting any street in the borough Provided that—

- (1) Where in the opinion of the Corporation any consent under this section is unreasonably refused they may appeal to a petty sessional court which shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think

reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid: A.D. 1905.

- (2) Any consent of an owner and any order of a petty sessional court under this section shall not have effect after the owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed. Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (1):
- (3) The owner may require the Corporation to temporarily remove the attachments where necessary during any reconstruction or repair of the building.

For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rackrent shall be deemed to be the owner.

No brackets wires or other apparatus shall under the provisions of this section be attached to any bridge or other work of the Great Western Railway Company without that Company's previous consent in writing unless it be determined as herein provided that such consent has been unreasonably withheld and if any question shall arise between the Corporation and the company as to whether any such consent is unreasonably withheld or as to the terms and conditions upon and subject to which any such attachment may be effected the same shall be determined by arbitration the arbitrator unless otherwise agreed being appointed by the Board of Trade.

6. If the local authority for any district adjoining the area which the Corporation are for the time being authorised to supply with electrical energy are or shall be authorised by Provisional Order confirmed by Parliament to supply energy or if any company shall be authorised to supply energy in any such district the Corporation and any such local authority or company may enter into and carry into effect agreements for the supply of electrical energy in bulk by the Corporation to such local authority or company. Supply of electrical energy outside borough.

A.D. 1905.

Power to
supply elec-
trical fittings
&c.

7.—(1) The Corporation may (through a contractor but not otherwise) purchase provide supply sell let use and otherwise deal in fit up fix alter repair remove and refix (but shall not manufacture) electric lines fuses switches fittings meters lamps lamp-holders motors and other apparatus incidental to or connected with the use or used in the supply of electrical energy and may provide materials and do all work necessary or proper in that behalf and may and shall take such remuneration rents or charges therefor as shall cover the entire costs thereof and no expense incurred in giving effect to the provisions of this section or in any way arising therefrom shall be charged upon the borough fund or borough rate and may make such terms and conditions with respect to such supply sale letting using fitting fixing altering repairing or removal or refixing of such apparatus or the provision of such materials or the doing of such work and for securing the safety and return to the Corporation of articles and fittings let and otherwise as may be agreed upon between the Corporation and the persons to or for whom the same are supplied sold let fitted fixed altered repaired removed refixed provided or done :

Provided that nothing in this section shall authorise the Corporation themselves to fix upon any consumer's premises electric light fittings or electric wiring other than may be required to complete the service line between the Corporation's supply mains and their own apparatus upon such consumer's premises.

(2) No electric line fuse switch fitting meter lamp lamp-holder motor apparatus or thing let for hire by the Corporation shall be subject to distress or to the landlord's remedy for rent or to be taken in execution under any process of law or equity or any proceeding in bankruptcy against the person or persons in whose possession the same may be. Provided that such electric line fuse switch fitting meter lamp lamp-holder motor apparatus or thing is marked or impressed with a sufficient mark or brand indicating the Corporation as the actual owners thereof.

Corporation
may refuse to
supply elec-
trical energy
in certain
cases.

8. The Corporation may refuse to supply electrical energy to any person whose payments for the supply of electrical energy are for the time being in arrear whether any such payments be due to the Corporation in respect of a supply to the premises in respect of which such supply is demanded or in respect of other premises.

9.—(1) Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 a person shall not be entitled to demand from the Corporation a supply of electrical energy to premises having a separate supply (that is to say a supply from an installation other than that of the Corporation) unless such person shall have previously agreed to pay to the Corporation such minimum annual sum as will give to the Corporation a reasonable return on the capital expenditure and other standing charges incurred by the Corporation to meet the possible maximum demand of such person.

A.D. 1905.
As to supply of electrical energy where consumer has separate supply.

(2) In case the Corporation and the person demanding such supply of electrical energy shall fail to agree on the amount of such minimum annual sum to be paid by such person the amount of such minimum annual sum shall be fixed by an electrical engineer to be appointed as arbitrator by the president of the Institution of Electrical Engineers.

10. Notwithstanding anything in section 9 of the Electric Lighting Act 1882 contained the annual statement of accounts of the electric lighting undertaking shall after the passing of this Act be filled up on or before the thirtieth day of June in every year and shall be made up to the thirty-first day of March next preceding and section 9 of the Electric Lighting Act 1882 shall as from the passing of this Act be read and have effect as regards the electric lighting undertaking as if the thirtieth day of June and the thirty-first day of March were therein mentioned instead of the twenty-fifth day of March and the thirty-first day of December.

Alteration of date for filling up annual accounts for electric lighting undertaking.

11.—(1) The Corporation shall so soon as the annual statement of accounts of their electric lighting undertaking has been filled up in the form prescribed by the Board of Trade under the Electric Lighting Act 1882 publish in a newspaper circulating in the borough a notification that such statement of accounts has been filled up and that copies of it can be obtained at the offices of the Corporation at a price not exceeding one shilling a copy and such publication shall be in addition to and not in substitution for any publication prescribed by the Board of Trade under the Electric Lighting Act 1882.

Revision of prices.

(2) The Corporation shall after the thirty-first day of March one thousand nine hundred and nine and on the expiration of each third succeeding year reconsider and if necessary revise and thereafter maintain the scales of prices charged for electrical

A.D. 1905. — energy under the Ealing Electric Lighting Order 1891 so that so far as is reasonably practicable no rate will be required for the purposes of defraying the future expenses of the said undertaking during the next three years Provided nevertheless that—

(A) The prices to be charged shall not exceed the maximum prices which may be charged under the said Order ;

(B) The scales of prices so reconsidered and revised may be from time to time in like manner reconsidered and revised by the Corporation.

(3) Nothing in this section contained shall prevent the Corporation from entering into contracts for periods which may extend beyond the periods at which any revision may take place under the provisions of this section on special terms under special circumstances not applicable to ordinary consumers but each such contract shall provide that the price to be charged for energy supplied under such contract shall either—

(A) Be subject to revision at the next triennial revision provided for in this section ; or

(B) Vary in the same proportion as the prices charged to ordinary consumers :

Provided that the Corporation shall not without their consent be required to accept any price lower than the minimum price mentioned in such contract.

(4) There shall not be made against the district rate or any other rate for energy used by the Corporation for street lighting or any other purpose a charge at a higher price than that charged to consumers using energy for similar purposes and for the like hours of supply.

Expenses
and revenue
under this
Part of Act.

12. Subject to the provisions of the section of this Act the marginal note whereof is "Power to supply electrical fittings &c." any expenses incurred by the Corporation in carrying into effect the provisions of this Part of this Act shall be deemed to be expenses incurred by the Corporation under the Electric Lighting Act 1882 and not otherwise provided for and the provisions of sections 7 and 8 of that Act shall extend and apply accordingly to such expenses.

Any capital moneys received by the Corporation under this Part of this Act shall be applied in manner provided by article fifty-three of the Ealing Electric Lighting Order 1891.

PART III.

A.D. 1905.

STREETS AND BUILDINGS.

(i) *Streets.*

13. When any plans or sections of any new street are submitted to the Corporation for their approval the Corporation may by order vary or alter the position direction or level of any intended new street for the purpose of causing it to communicate in a direct or more direct line with any other street adjoining or leading thereto The Corporation shall make compensation to any person who may be injuriously affected by the exercise of the powers conferred by this section.

Power to
vary position
or direction of
new streets.

14.—(1) Every person who intends to form or lay out a new street shall in addition to the information required to be supplied to the Corporation by virtue of any enactments or byelaws with respect to streets and buildings for the time being in force within the borough distinctly define and mark on a plan drawn to a convenient scale to be prepared and submitted by such person to the Corporation for their approval the proposed line of frontage of any new buildings or erections to be erected or built in or fronting such street.

Line of
frontage of
new streets
to be shown
on plan.

(2) It shall not be lawful to erect or bring forward in any such street any house or building or any part of such house or building nor to build any addition to such house or building beyond the building line shown on such plan and any person offending against this enactment shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(3) The provisions of section 3 of the Public Health (Buildings in Streets) Act 1888 shall not apply to any house or building proposed to be erected or erected on lands in respect of which a plan as aforesaid shall have been submitted to the Corporation.

(4) Nothing in this section shall authorise the Corporation to require as a condition of their approval the setting back of the line of frontage shown on the plan more than ten feet in addition to half the prescribed width from the centre of the street.

A.D. 1905.

15. In any case where it is intended—

Greater
width of
street may be
required in
certain cases.

(A) To form or lay out any new street for carriage traffic ; or

(B) To adapt or permit to be used for carriage traffic any street not previously so adapted ;

and the Corporation shall deem it expedient in the public interest that the street should by reason of its length or importance or in consequence of its forming or being so situate as to be likely to form part of an important line of communication or for other sufficient reason be of a greater width than the prescribed width the Corporation may make it a condition of their sanction that the street shall be throughout or in such part as they may direct of a greater width than the prescribed width but nothing in this section shall authorise the Corporation to require a greater width than fifty feet :

Provided that the Corporation shall make compensation to the owner of the lands required for such greater width for the loss or injury (if any) sustained by him by such requirement and failing agreement the amount of such compensation shall be determined by arbitration in the manner provided by the Lands Clauses Acts :

Provided also that the Corporation may if they think fit instead of paying compensation under this section agree with the owner of such lands for the purchase of the same or of any part or parts thereof.

Corporation
may declare
where streets
begin and end.

16. The Corporation may by order declare the limits at or within which any street is to be taken as beginning or ending.

Intersecting
streets.

17. No new street shall be laid out of more than two hundred yards in length without an intersecting street or streets Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Continuation
of existing
street to be
deemed new
street.

18. Every continuation of an existing street shall for the purposes of the Public Health Acts and of this Act and of any byelaws made thereunder and for the time being in force within the borough be deemed to be a new street Provided that this section shall not apply to or in the case of any continuation of any existing street the plan and section of which continuation have been approved of by the Corporation before the passing of this Act.

19. The Corporation may (if in the circumstances of the case they think it expedient so to do) make it a condition of approving the plans of any new street that such street shall be so laid out and formed that the same shall not terminate with a dead end or cul-de-sac and in any such case the street shall not be laid out and formed except in accordance with such condition unless the person laying out such street can show that it would be unreasonable or impracticable for him to comply therewith.

A.D. 1905.
 Provision for
 preventing
 formation of
 culs-de-sacs.

Any person offending against this section shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding forty shillings.

20.—(1) The Corporation may with the consent of two thirds in number and value of the ratepayers in any street alter the name of such street or any part of such street.

Power to
 alter names
 of streets.

(2) The Corporation may cause the name of any street or of any part of a street to be painted or otherwise marked on a conspicuous part of any building or other erection.

(3) Any person who shall wilfully and without the consent of the Corporation obliterate deface remove or alter any such name shall be liable to a penalty not exceeding forty shillings.

21. Before any name is given to any street notice of the intended name shall be given to the Corporation and the Corporation may by notice in writing given to the person by whom notice of such intended name has been given to them at any time within one month after receipt of such notice object to such intended name and it shall not be lawful to set up any name to any street until the expiration of one month after notice thereof has been given as aforesaid to the Corporation or to set up any name objected to as aforesaid. Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Notice of
 new name of
 street.

22. Every person desirous of forming a communication for horses or vehicles across any kerbed footway so as to afford access to any premises from a street repairable by the inhabitants at large shall first give notice in writing of such desire to the Corporation and shall if so required by them submit to them for their approval a plan of the proposed communication showing where it will cut the footway and what provision (if any) is made

Crossings
 for horses or
 vehicles over
 footways.

A.D. 1905. for kerbing for gullies and for a paved crossing and the dimensions and gradients of the necessary works and shall execute the works at his own expense under the supervision and to the satisfaction of the borough surveyor and in case such plan shall have been required then in accordance with the plan so approved and not otherwise:

Provided that unless the Corporation shall within one month after submission of the said plan signify in writing their disapproval of the same to the person desirous of forming such communication as aforesaid the said plan shall be deemed to be approved by the Corporation :

If any person drives or permits or causes to be driven any horse or vehicle across any footway unless and until such a communication as aforesaid has been so made or on or along any part of such footway other than the part over which such communication has been made he shall be liable to a penalty not exceeding forty shillings in addition to the amount of damage (if any) done to such footway :

Provided that this section shall not be deemed to apply to temporary crossing of footways during building operations if means satisfactory to the Corporation be taken to protect such footways from injury and for the convenience of foot passengers.

No buildings
allowed until
street de-
fined.

23. No person except with the consent of the Corporation shall in any new street commence to erect any new building or to excavate for the foundation thereof until the whole length of the street shall have been defined by posts or in some other sufficient manner to indicate the approved line and level thereof.

Any person offending against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

Trees or
shrubs over-
hanging
streets.

24. Where any tree hedge or shrub or any part thereof overhangs any street so as to obstruct or interfere with the light from any public lamp or to interfere with the free passage of passengers the Corporation may serve a notice on the owner of the tree hedge or shrub or on the occupier of the premises on which such tree hedge or shrub is growing requiring him within seven days after such notice to lop the tree hedge or shrub so as to prevent such obstruction or interference and in default of compliance the Corporation may themselves carry out the requisition of their notice doing no unnecessary damage.

25. If any land in the borough (other than land now forming part of any common) adjoining any street is allowed to remain unfenced or the fences thereof are allowed to be or remain out of repair and such land is in the opinion of the Corporation owing to the absence or inadequate repair of any such fence a source of danger to passengers or is used for any immoral or indecent purpose or for any purpose causing inconvenience or annoyance to the public then after the expiration of fourteen days' notice from the town clerk to the owner or the occupier of the same or without any notice if the Corporation are unable after diligent inquiry to discover the name or place of abode of such owner or occupier the Corporation may cause the same to be fenced or may cause the fences to be repaired in such manner as they think fit and the expenses thereby incurred may be recovered from such owner or occupier summarily as a civil debt.

A.D. 1905.

Vacant land
to be fenced.(ii) *Buildings.*

26. The Corporation may retain any drawings plans elevations specifications and written particulars descriptions or details deposited with them in pursuance of any enactment for the time being in force or any byelaw thereunder.

Power of
Corporation
to retain
plans &c.

27. The approval by the Corporation of any plan or section of any street or building and the notice of intention to lay out or construct such street or building shall be null and void if the execution of the work specified in such plan or section be not commenced within the following periods (that is to say) :—

Approval of
plans &c.

As to plans or sections approved after the passing of this Act within two years from the date of such approval ;
and

As to plans or sections approved before the passing of this Act within two years from the passing of this Act :

And at the expiration of those respective periods fresh notice deposits and approval shall unless the Corporation otherwise determine be requisite.

The Corporation shall give notice of the provisions of this section to every person intending to lay out a new street or erect a new building the plans for which shall have been approved before the passing of this Act but the laying out of which street or erection of which building shall not have been commenced and shall attach a similar notice to every approval of plans given subsequent to the passing of this Act.

A.D. 1905.

What to be
deemed new
buildings.

28. From and after the passing of this Act—

- (1) The conversion into a dwelling-house of any building or part of a building not originally constructed for human habitation ;
- (2) The conversion of a building which when originally erected was legally exempt from the operation of any building byelaws in force within the borough into a building which had it been originally erected in its converted form would have been within the operation of those byelaws ; and
- (3) The making of any addition to any existing building by raising any part of the roof or making any projection therefrom but so far as regards such addition only ;

shall for all the purposes of this Act and of any Acts for the time being in force within the borough and of the Public Health Acts and of any byelaws made thereunder respectively be deemed to be the erection of a new building.

Byelaws as
to building
materials.

29. The Corporation may make byelaws with respect to the materials with which new buildings shall be constructed and the manner in which and the materials with which grates stoves and fireplaces shall be set in new buildings.

As to tem-
porary and
movable
buildings.

30.—(1) Before any person erects or sets up any temporary or movable building he shall apply to the Corporation for permission so to do and such application shall be accompanied by a plan and section of the proposed building drawn to a scale of not less than one inch to every eight feet and a block plan drawn to a convenient scale showing the intended situation and surroundings of the proposed building together with a specification describing the materials proposed to be used in the construction thereof and the purpose for which the building is intended.

(2) The Corporation shall within one month after the delivery of the plan section and specification signify in writing their approval or disapproval of the building to the person proposing or intending to set up the same.

(3) The Corporation may attach to their approval any condition which they may deem proper with regard to the sanitary arrangements of such building the ingress thereto and the egress therefrom protection against fire and the period during which such building shall be allowed to stand.

(4) If any such building is commenced erected or set up without such application accompanied by such plan section and

specification or after the disapproval thereof by the Corporation or before the expiration of one month without such approval or is in any respect not in conformity with any condition attached by the Corporation to their approval the person who commenced erected or set up such building or if any such building is not removed within the period allowed by the Corporation or any prolongation thereof allowed by them the owner of such building shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may cause such building to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered in a summary manner from the owner of the building or from the person erecting or setting up the same at their discretion.

A.D. 1905.
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(5) The following buildings and works shall be exempt from the operation of this section—

(A) Buildings expressly exempt from the operation of the Acts or byelaws for the time being in force within the borough with respect to new buildings:

(B) Any wooden or other structure or erection of a movable or temporary character erected or set up for use during the construction alteration or repair of any building but such structure or erection shall be pulled down or removed immediately after the completion of such construction alteration or repair and if not so taken down or removed the Corporation may cause the same to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered in a summary manner from the owner of the building or from the person erecting or setting up the same at their discretion:

(c) Any wooden or other structure or erection erected or set up for the purpose of protecting or of preventing the acquisition of any right of light.

31. When a temporary or other building referred to in the last preceding section is taken down or removed by the Corporation under the powers of this Part of this Act the Corporation may sell the materials thereof or any part of them and shall apply the proceeds of the sale in or towards payment of the costs and expenses incurred by them in relation to such building and shall pay the balance (if any) to the owner of such building.

Power to
sell materials
of temporary
building.

A.D. 1905.

Restrictions
on deposit of
building
materials and
excavations.

32.—(1) It shall not be lawful for any person without the consent of the Corporation in writing first obtained to lay any building materials rubbish or other thing or make any excavation on or in any street and when with such consent any person lays any building materials rubbish or other thing or makes any excavation on or in any street he shall at his own expense cause the same to be sufficiently fenced and a sufficient light to be fixed in a proper place on or near to the same and to be continued every night from sunset to sunrise and shall remove such materials rubbish or thing or fill up such excavation (as the case may be) when required by the Corporation.

(2) Any person who fails to comply in any respect with the requirements of this enactment shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings and the Corporation may remove any such materials rubbish or thing or fill up such excavation (as the case may be) and recover the expenses from the offender summarily.

Saving for
railway com-
panies.

33. Nothing in this Part of this Act or in any byelaws to be made thereunder shall apply to any building (not being a dwelling-house) belonging to any railway company and used by such company as a part of or in connection with their railway.

PART IV.

SEWERS DRAINS AND CLOSET ACCOMMODATION.

Corporation
may require
enlarged
sewer.

34. If in any new street the Corporation for the purpose of main drainage or otherwise shall require a larger sewer or drain to be made than they consider necessary for the ordinary sewerage or drainage of such new street the person laying out such new street shall construct such enlarged sewer or drain in accordance with the requirements of the Corporation and the additional cost thereof as ascertained by the borough surveyor shall be paid by the Corporation.

Provisions as
to separate
system of
sewerage.

35.—(1) The Corporation may by resolution declare that any sewer for the time being belonging to them shall thenceforth be appropriated and used for sewage (in this Act called a "sewage sewer") and they may also declare that any other sewer for the time being belonging to them shall thenceforth be appropriated and used for surface water (in this Act called a "surface water sewer").

(2) Where under the provisions of the Public Health Acts the Corporation have power to require any street to be sewered

they may require the provision of separate sewage sewers and surface water sewers and the provisions of those Acts shall apply to such sewers accordingly.

(3) Where in any street separate sewage sewers and surface water sewers shall have been provided no sewage shall be allowed to pass from any premises into the surface water sewers and so far as practicable no surface or storm water shall be allowed to pass into the sewage sewers except with the consent in writing of the Corporation :

Any person offending against the provisions of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings :

Provided that in the case of any premises existing at the time of the provision of separate sewers the drains whereof were already connected with a sewer and would but for the provisions of this section have been sufficient to effectually drain such premises the provisions of this subsection shall not apply to such premises until the Corporation have at their own expense made all necessary alterations to the drains and pipes of such premises in order to keep separate the sewage and surface water drainage thereof and the Corporation may if they think fit make all such alterations.

36. It shall not be lawful for any person to reconstruct or alter the course of any drain communicating with any sewer of the Corporation except in accordance with the provisions of the byelaws relating to the drainage of new buildings.

As to reconstruction of drains.

Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

37. The powers given by section 19 of the Public Health Acts Amendment Act 1890 in relation to two or more houses belonging to different owners shall extend and apply to two or more houses belonging to the same owner.

Amendment of section 19 of Public Health Acts Amendment Act 1890.

38. If it appear to the Corporation that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of such houses the Corporation may when the drains for such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Corporation if they so decide or by the owners in such manner as the Corporation shall direct and the costs and expenses of such combined

Drainage of houses by combined operation.

A.D. 1905. — drain and the repair and maintenance thereof shall be apportioned between the owners or occupiers of such houses in such manner as the Corporation shall determine and if such drain is constructed by the Corporation such costs and expenses may be recovered by the Corporation from such owners or occupiers in a summary manner before a court of summary jurisdiction. Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer. Provided that the Corporation shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by the Corporation.

Owner &c.
to permit
application
of test to
drains.

39. Whenever the borough surveyor or the medical officer of health or an inspector of nuisances of the borough has reasonable grounds for believing that the drains connected with any building are defective so as to cause risk to health he may after twenty-four hours' notice and with the consent (except in the case of houses let in separate dwellings) of the owner or occupier of such building or in the event of objection by any such owner or occupier after obtaining the order of a court of summary jurisdiction apply such test (other than test by water under pressure) as he may consider efficient to such drains for the purpose of discovering any defects therein. Any owner or occupier who refuses notwithstanding such order to allow such test to be made or to give all reasonable facilities for making such test shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

If the drains be found defective so as to cause risk to health the owner or occupier of the premises shall be bound on receiving notice from the Corporation to that effect specifying generally the nature of the defect to carry out all reasonable operations for remedying the same within a reasonable time to be named in such notice and if he makes default in so doing the Corporation may enter and execute the work and recover the expenses thereof from the owner or occupier in a summary manner or where the owner is the person liable as private improvement expenses are recoverable under the Public Health Acts but nothing in this section shall affect contracts between owner and occupier.

If no sufficient closet accommodation Corporation may require water-closet.

40.—(1) If on the report of the medical officer of health or an inspector of nuisances of the borough the Corporation are satisfied that any building has not sufficient closet accommodation provided thereat or in connection therewith the Corporation may (notwithstanding anything in the Public Health Acts) when a

sewer and water supply sufficient for the purposes are reasonably available by written notice to the owner require that such building shall be provided with proper and sufficient waterclosets.

(2) If the owner of any such building fail in any respect to comply with a notice of the Corporation under this section the Corporation may at the expiration of a time to be specified in the notice (not being less than fourteen days after the service of the notice) do the work specified in such notice and may recover from the owner all expenses reasonably incurred by the Corporation in so doing in a summary manner as a civil debt.

(3) Where any person deems himself aggrieved by any requirement of the Corporation under subsection (1) or by the amount of expenses charged to him by the Corporation under subsection (2) of this section such person may within fourteen days after the service of notice of the requirement or of the amount of expenses (as the case may be) appeal to a petty sessional court and the court may make such order in the matter as to them may seem equitable. Provided nevertheless that the right of appeal subsequent to the service of a demand for payment shall be restricted to the ground of the reasonableness of the amount of the expenses and the appellant shall be precluded from raising at that stage any other question. Pending the decision of the court upon an appeal under subsection (1) the Corporation shall not be empowered to execute any works included in the notice.

41. The Corporation may make byelaws with respect to waterclosets and may by such byelaws prescribe the description or nature size materials position and level thereof and of the apparatus and the manner of flushing the same and the means to be provided for protecting the same from frost:

Byelaws as to water-closets.

Provided always that any byelaws made by the Corporation under this section shall be subject to any regulations made under the Metropolis Water Act 1871 or any Act amending or extending the same.

42. If a watercloset or drain is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such construction or repair was not due to any wilful act neglect or default be liable to a fine not exceeding twenty pounds:

Improper construction or repair of watercloset or drain.

Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or

A.D. 1905. — workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if he proves to the satisfaction of the court that he had used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any fine and the said other person may be summarily convicted of the offence.

Require-
ments as to
dustbins.

43. The Corporation may by notice in writing require the owner or occupier of any dwelling-house to provide galvanised iron dustbins in lieu of ashpits and such bins shall be of such size and construction as may be approved by the Corporation and any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Corporation shall for every such offence be subject to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings. Provided that this section shall not apply to any dustbins or ashpits in use at the commencement of this Act so long as the same are of suitable size and construction and in proper order and condition.

Public con-
veniences
and lava-
tories.

44. The powers of the Corporation under section 39 of the Public Health Act 1875 and section 20 of the Public Health Acts Amendment Act 1890 shall extend to authorise them to provide and maintain closet accommodation urinals and lavatories in or under any street vested in or repairable by the Corporation for the use of the public and to employ and pay attendants and to make reasonable charges for the use of any convenience (other than a urinal) or of any lavatory so provided.

The Corporation may make byelaws for the management of such conveniences and lavatories and as to the conduct of persons resorting to the same and may let any such conveniences urinals and lavatories for such periods and upon and subject to such terms and conditions as they may think fit.

Corporation
may require
removal or
alteration of
urinals.

45. If any urinal or other sanitary convenience now or hereafter opening on any street shall be so placed or constructed as to be a nuisance or offensive to public decency the Corporation by notice in writing may require the owner to remove such urinal or convenience or otherwise to reconstruct the same in such a manner and with such materials as may be required to abate the nuisance and remove the offence against public decency. Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

PART V.

A.D. 1905.

SKY SIGNS AND HOARDINGS.

46.—(1) It shall not be lawful to erect or fix to upon or in connection with any building or erection any sky sign and it shall not be lawful to retain any existing sky sign so erected or fixed for a longer period than three years after the passing of this Act nor during that period except with the licence of the Corporation and in the event of such licence being granted then only for such period not exceeding three years from the passing of this Act and under and subject to such terms and conditions as shall be therein prescribed. Provided that in any of the following cases a licence of the Corporation under this subsection shall become void (namely):—

Regulations
as to sky
signs.

- (i) If any addition to any sky sign be made except for the purpose of making it secure under the direction of the borough surveyor ;
- (ii) If any change be made in the sky sign or any part thereof ;
- (iii) If the sky sign or any part thereof fall either through accident decay or any other cause ;
- (iv) If any addition or alteration be made to or in the house building or structure on over or to which any sky sign is placed or attached if such addition or alteration involves the disturbance of the sky sign or any part thereof ; or
- (v) If the house building or structure over on or to which the sky sign is placed or attached become unoccupied or be demolished or destroyed :

Provided also that if any sky sign be erected or retained contrary to the provisions of this Act or after the licence for the erection maintenance or retention thereof for any period shall have expired or become void it shall be lawful for the Corporation to take proceedings for the taking down and removal of the sky sign in the same manner and with the same consequence as to recovery of expenses and otherwise in all respects as if it were an obstruction within the meaning of section 69 of the Towns Improvement Clauses Act 1847.

(2) Any person acting in contravention of any of the provisions of this section or of the terms and conditions (if any) of any approval licence or consent under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

A.D. 1905.

Definition of
sky sign.

47. In and for the purposes of this Act the expression "sky sign" means any word letter model sign device or representation in the nature of an advertisement announcement or direction supported on or attached to any post pole standard framework or other support wholly or in part upon over or above any house building or structure which or any part of which sky sign shall be visible against the sky from some point in any street or public way and includes all and every part of any such post pole standard framework or other support. The expression "sky sign" shall also include any balloon parachute or other similar device employed wholly or in part for the purposes of any advertisement or announcement on over or above any building structure or erection of any kind or on or over any street or public way but shall not include (1) Any flagstaff pole vane or weathercock unless adapted or used wholly or in part for the purpose of any advertisement or announcement (2) Any sign or any board frame or other contrivance securely fixed to or on the top of the wall or parapet of any building or on the cornice or blocking course of any wall or to the ridge of a roof. Provided that such board frame or other contrivance be of one continuous face and not open work and do not extend in height more than three feet above any part of the wall or parapet or ridge to against or on which it is fixed or supported (3) Any word letter model sign device or representation as aforesaid relating exclusively to the business of a railway company and placed wholly upon or over any railway railway station yard platform or station approach belonging to a railway company and so placed that it cannot fall into any street or public place.

As to hoard-
ings and
other struc-
tures used for
advertising
purposes.

48.—(1) Every hoarding or similar structure in or abutting on or adjoining any street or so near to any street that it might if not supported fall thereon shall be securely erected and maintained.

(2) It shall not be lawful after the passing of this Act to erect wholly or partly for advertising purposes any such hoarding or similar structure to a greater height than twelve feet above the level of such street without the consent of the Corporation and such consent may be given subject to such conditions as to the submission of a plan and elevation and as to the maintenance of such hoarding or similar structure as the Corporation may determine.

(3) The owner or other person using any hoarding wall or other structure for advertising purposes whether erected before or after the passing of this Act shall at all times hereafter keep

and maintain the same in proper and safe repair and condition and in the event of any paper affixed for advertising purposes to such hoarding wall or other structure falling off or becoming detached shall forthwith remove and clear away such paper.

(4) Any person who acts in contravention of any of the provisions of this section or who violates any conditions made or the terms of any consent given in pursuance of such provisions shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(5) Any consent or condition given or made under this section may be under the hand of the town clerk or surveyor.

(6) Any person aggrieved by the refusal of the Corporation to grant such consent or by the conditions attached to such consent may appeal to a court of summary jurisdiction after the expiration of two clear days after the decision of the Corporation is notified to him in writing under the hand of the town clerk provided he gives twenty-four hours' written notice of such appeal and the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs such costs to be recoverable as a civil debt.

PART VI.

SANITARY REGULATIONS.

49. For the purposes of the Public Health Act 1875—

As to
nuisances.

- (A) Any cistern used for the supply of water for domestic purposes so placed constructed or kept as to render the water therein liable to contamination causing or likely to cause risk to health ;
- (B) Any gutter drain shoot stack-pipe or down-spout of a building which by reason of its insufficiency or its defective condition shall cause damp in such building or in an adjoining building ; and
- (C) Any deposit of material in or on any building or land which shall cause damp in such building or in an adjoining building so as to be dangerous or injurious to health ;

shall be deemed to be a nuisance within the meaning of the said Act.

A.D. 1905.

Byelaws as
to cisterns
&c.

50. The Corporation may make byelaws for securing the accessibility for purposes of cleansing and the cleanliness and freedom from pollution of tanks cisterns and other receptacles used for the storing of water used or likely to be used by man for drinking or domestic purposes or for manufacturing any liquid to be used by man for drinking whether aerated or otherwise.

Public drink-
ing foun-
tains.

51. The Corporation may put up continue remove or discontinue drinking fountains and cattle troughs with proper conveniences for the gratuitous supply of water for drinking and for watering of cattle and horses at such fountains or troughs respectively and may furnish or discontinue such gratuitous supply (but for such drinking and watering only) in such public places as the Corporation may think fit.

Any person who wilfully uses any water so gratuitously supplied elsewhere or otherwise than as hereinbefore mentioned or who wilfully fouls such water shall be liable to a penalty not exceeding forty shillings.

Provisions as
to houses
without pro-
per water
supply.

52. The owner of any dwelling-house which is not provided with a proper and sufficient water supply who shall occupy or allow to be occupied such dwelling-house shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Yards to be
paved.

53. If any yard or open space in connection with any dwelling-house erected before the passing of this Act shall not be so formed flagged asphalted or paved as to allow of the surface water being carried off to the drains the Corporation may give to the owner of such house notice in writing requiring him within fourteen days after such notice shall have been so given to proceed to form and to flag asphalt or pave the whole or so much of such yard or open space as will allow of the surface water being carried off to the drains and within twenty-eight days after such notice shall have been so given to complete such several works to the satisfaction of the Corporation.

If such owner shall make default in complying with any of such requirements to the satisfaction of the Corporation within the respective times aforesaid the Corporation may if they think fit execute the works necessary for carrying out such requirements and the expenses incurred by them in so doing shall be paid to the Corporation by such owner and may be recovered summarily as a civil debt.

54. Any person being a manufacturer or vendor of or merchant or dealer in ice cream or other similar commodity who within the borough—

A.D. 1905.
For regula-
ting manu-
facture and
sale of ice
cream.

(A) Causes or permits ice cream or any similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any cellar or room or place which is in a condition to render such commodity or materials injurious to health or in which there is an inlet or opening to a drain or which is used as a sleeping room ; or

(B) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination ; or

(C) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer of health ;

shall be liable for every such offence to a penalty not exceeding forty shillings.

55. Every dealer in ice cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand must have his name and address legibly painted or inscribed on such cart barrow or stand and if he fails to comply with this enactment he shall be liable to a penalty not exceeding forty shillings.

As to dealers
in ice cream.

56. Whenever it shall be certified to the Corporation by the medical officer of health that it is desirable with a view to prevent the spread of infectious disease that they should be furnished with a list of the customers of any person earning a livelihood or deriving gain by the washing or mangling of clothes the Corporation may require such person to furnish to them a full and complete list of the names and addresses of the customers for whom such person washes or mangles or has washed or mangled during the past six weeks and such person shall furnish such list accordingly and the Corporation shall pay to him for every such list the sum of sixpence and at the rate of sixpence for every twenty-five names contained therein Any person wilfully or knowingly offending against this enactment shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Persons en-
gaged in
washing.

A.D. 1905.

Public notice
to be given
of certain
provisions
of Act.

57. The Corporation shall cause public notice to be given of the effect of the provisions of the sections of this Act whereof the marginal notes are "For regulating manufacture and sale of ice cream" "As to dealers in ice cream" and "Persons engaged in washing" by advertisement in local newspapers and by hand-bills or otherwise in such manner as they think sufficient and those sections shall come into operation at such time being not less than one month after the first publication of such an advertisement as aforesaid as the Corporation may fix.

Power to me-
dical officer
to examine
school
children.

58. The medical officer of health may enter any public elementary school within the borough at all reasonable times and examine the scholars attending the same and may exclude from attendance thereat for such period as he shall consider requisite any scholar who in his opinion is suffering from infectious disease or is likely to spread infection.

The medical officer of health shall upon the exclusion of any scholar in manner aforesaid give notice thereof in writing to the principal or person in charge of such school or (if such school is divided into separate departments and there is no principal or person in charge of the whole school) the person in charge of the department which such scholar attends and shall send a copy of such notice to the parent or guardian of the scholar.

Any person who obstructs the medical officer of health in carrying into effect the provisions of this section or who permits any scholar to attend school after he shall have been excluded as aforesaid and before the expiration of the period of exclusion shall be liable to a penalty not exceeding forty shillings.

Protection
against in-
fection of
books in
lending
libraries.

59. No person shall take out of any public or lending library any book for use in any house in which there is a person suffering from infectious disease and no person shall return to any such library any book which has been to his knowledge exposed to infection from any infectious disease but shall at once give notice thereof to and leave the book at the office of the inspector of nuisances of the borough who shall cause the same to be disinfected and then returned to the librarian or owner or destroyed and if destroyed the Corporation shall pay the owner thereof the value.

Any person offending against this enactment shall be liable to a penalty not exceeding forty shillings.

60. If any person shall at the request of the Corporation or of the medical officer of health stop his employment for the purpose of preventing the spread of infectious disease the Corporation may make compensation to him for any loss he may sustain by reason of such stoppage.

A.D. 1905.

Power to compensate persons suspending employment.

61. The Corporation may provide and supply (with or without charge therefor) to any medical practitioner antidotes and remedies against infectious disease.

Corporation may supply antidotes against infectious disease.

62. The Corporation may appoint more than one inspector of nuisances and sections 189 and 191 of the Public Health Act 1875 and section 24 of the Local Government Act 1888 shall for the purposes of the execution of those Acts within the borough be construed accordingly.

Power to appoint additional inspectors of nuisances.

PART VII.

MILK SUPPLY.

63. In this Part of this Act—

Definitions in this Part of Act.

“Dairy” means any farm farmhouse cowshed milk store milk shop or other place from which milk is supplied or in which milk is kept for purposes of sale ;

“Dairyman” means any cowkeeper purveyor of milk or occupier of a dairy.

64. Every person who knowingly sells or suffers to be sold or used for human consumption within the borough the milk of any cow which is suffering from tuberculosis of the udder shall be liable to a penalty not exceeding ten pounds.

Penalty for selling milk of diseased cows.

65. Any person the milk of the cows in whose dairy is sold or suffered to be sold or used for human consumption within the borough who after becoming aware that any cow in his dairy is suffering from tuberculosis of the udder keeps or permits to be kept such cow in any field shed or other premises along with other cows in milk shall be liable to a penalty not exceeding five pounds.

Penalty on failing to isolate diseased cows.

66. Every dairyman who supplies milk within the borough and has in his dairy any cow affected with or suspected of or exhibiting signs of tuberculosis of the udder shall forthwith give written notice of the fact to the medical officer of health stating his name and address and the situation of the dairy or premises where the cow is.

Obligation to notify cases of tuberculosis.

Any dairyman failing to give such notice as required by this section shall be liable to a penalty not exceeding forty shillings.

A.D. 1905.

Power to
take samples
of milk.

67.—(A) It shall be lawful for the medical officer of health or any person provided with and if required exhibiting the authority in writing of such medical officer to take within the borough for examination samples of milk produced or sold or intended for sale within the borough.

(B) The like powers in all respects may be exercised outside the borough by the medical officer of health or such authorised person if he shall first have obtained from a justice having jurisdiction in the place where the sample is to be taken an order authorising the taking of samples of the milk which order any such justice is hereby empowered to make.

Power to in-
spect cows
and to take
samples of
milk.

68.—(A) If milk from a dairy situate within the borough is being sold or suffered to be sold or used within the borough the medical officer of health or any person provided with and if required exhibiting the authority in writing of the medical officer of health may if accompanied by a properly qualified veterinary surgeon at all reasonable hours enter the dairy and inspect the cows kept therein and if the medical officer of health or such person has reason to suspect that any cow in the dairy is suffering from tuberculosis of the udder he may require the cow to be milked in his presence and may take samples of the milk and the milk from any particular teat shall if he so requires be kept separate and separate samples thereof be furnished.

(B) If the medical officer of health is of opinion that tuberculosis is caused or is likely to be caused to persons residing in the borough from consumption of the milk supplied from a dairy situate within the borough or from any cow kept therein he shall report thereon to the Corporation and his report shall be accompanied by a report to be furnished to him by the veterinary surgeon and the Corporation may thereupon serve on the dairyman notice to appear before them within such time not less than twenty-four hours as may be specified in the notice to show cause why an order should not be made requiring him not to supply any milk from such dairy within the borough until the order has been withdrawn by the Corporation.

(C) If the medical officer of health has reason to believe that milk from any dairy situate outside the borough from which milk is being sold or suffered to be sold or used within the borough is likely to cause tuberculosis in persons residing within the borough the powers conferred by this section may in all respects be exercised in the case of such dairy Provided that the medical officer of health or other authorised person shall

first have obtained from a justice having jurisdiction in the place where the dairy is situate an order authorising such entry and inspection which order any such justice is hereby empowered to make. A.D. 1905.

(D) Every dairyman and the persons in his employment shall render such reasonable assistance to the medical officer of health or such authorised person or veterinary surgeon as aforesaid as may be required by such medical officer of health person or veterinary surgeon for all or any of the purposes of this section and any person refusing such assistance or obstructing such medical officer of health person or veterinary surgeon in carrying out the purposes of this section shall be liable to a penalty not exceeding five pounds.

(E) If in their opinion the dairyman fails to show cause why such an order should not be made as aforesaid the Corporation may make the said order and shall forthwith serve notice of the facts on the county council of any administrative county in which the dairy is situate and on the Local Government Board and if the dairy is situate outside the borough on the council of the borough or district in which it is situate.

(F) The said order shall be forthwith withdrawn on the Corporation or their medical officer of health being satisfied that the milk supply has been changed or that it is not likely to cause tuberculosis to persons residing in the borough.

(G) If any person after any such order has been made supplies any milk within the borough in contravention of the order or sells it for consumption therein he shall be liable to a penalty not exceeding five pounds and if the offence continues to a further penalty not exceeding forty shillings for every day during which the offence continues.

(H) A dairyman shall not be liable to an action for breach of contract if the breach be due to an order under this section.

69. The dairyman may appeal against an order of the Corporation made under the last preceding section or the refusal of the Corporation to withdraw any such order either to a petty sessional court having jurisdiction within the borough or at his option if the dairy is situate outside the borough to the Board of Agriculture and Fisheries who shall appoint an officer to hear such appeal. Such officer shall fix a time and place of hearing within the borough and give notice thereof to the dairyman and

Appeal.

A.D. 1905. the town clerk not less than forty-eight hours before the hearing
Such officer shall for the purposes of the appeal have all the powers of a petty sessional court.

The Board of Agriculture and Fisheries may at any stage require payment to them by the dairyman of such sum as they deem right to secure the payment of any costs incurred by the Board in the matter of the appeal.

The court or the Board as the case may be may confirm vary or withdraw the order which is the subject of the appeal and may direct to and by whom the costs of the appeal (including any sum paid or payable to the Board as aforesaid) are to be paid but pending the decision of the appeal the order shall remain in force unless previously withdrawn by the Corporation.

Compensation to dairyman.

70. If an order is made without due cause or if the Corporation unreasonably refuse to withdraw the order the dairyman shall if not himself in default be entitled to recover from the Corporation full compensation for any damage which he has sustained by reason of the making of the order or of the refusal of the Corporation to withdraw the order.

The court or the Board of Agriculture and Fisheries may determine and state whether an order the subject of appeal has been made without due cause and whether the Corporation have unreasonably refused to withdraw the order and whether the dairyman has been in default.

Any dispute as to the fact whether the order has been made or maintained without due cause or as to the fact of default where any such fact has not been determined by the court or the Board or as to the fact of damage or as to the amount of compensation shall be determined in the manner provided by section 308 of the Public Health Act 1875 and that section shall accordingly apply and have effect as if the same were herein re-enacted and in terms made applicable to any such dispute as aforesaid.

Notice of provisions of this Part of Act.

71. The Corporation shall cause to be given public notice of the effect of the provisions of this Part of this Act by advertisement in local newspapers and by handbills and otherwise in such manner as they think sufficient and this Part of this Act shall come into operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Corporation may fix.

72. Offences under this Part of this Act may be prosecuted and penalties may be recovered by the Corporation before a petty sessional court having jurisdiction in the place where the dairy is situate or the offence is committed and not otherwise.

A.D. 1905.
Procedure.

73. All expenses incurred by the Corporation in carrying into execution the provisions of this Part of this Act shall be chargeable upon the district fund and general district rate and the Corporation may also charge upon the same fund and rate any expenses incurred by them in the application by a veterinary surgeon of the tuberculin or other reasonable test for the purpose of discovering tuberculosis to any cow whose milk is or was recently being supplied within the borough. Provided that no such test shall be applied except with the previous consent of the owner of such cow.

As to ex-
penses.

74. This Part of this Act may be carried into execution by a committee of the council formed in accordance with and subject to the provisions of the Fourth Schedule to the Diseases of Animals Act 1894 except that the committee shall consist wholly of members of the council.

Execution of
this Part of
Act by com-
mittee.

PART VIII.

RECREATION GROUNDS AND THE COMMONS.

75. The Corporation may set apart any portion of any park garden or pleasure ground for the time being belonging to or held by them for cricket bowls football tennis and other games and for the drill of volunteers yeomanry or cadets or of any military or police force or for the purposes of the delivery of speeches or the holding of meetings of public or local interest and may make an agreement with any club or association by which such portion may be secured to the club or association but so that the same shall be open to the public when not in use for such games or drill or other purposes and the Corporation may make byelaws for regulating the use of the portions of the park garden or pleasure ground so set apart.

Setting apart
and closing
recreation
grounds for
games.

76. The Corporation may provide swings and other apparatus for games and recreation in any public park garden and recreation ground within the borough and may charge for the use thereof and they may make regulations with respect to the use and the payment for the use of such swings and other apparatus.

Power to
provide ap-
paratus for
games.

A.D. 1905.

Seats chairs
and shelters
for public
use.

77. The Corporation may place seats and chairs and erect shelters in any street and in any place of public resort or recreation belonging to or under the control or management of the Corporation for the use of the public and may if they think fit charge a reasonable sum for the use of chairs and may make byelaws for regulating the use of seats shelters and chairs and for preventing injury or damage thereto.

Power to
erect main-
tain and let
conserva-
tories re-
freshment
rooms &c.

78. The Corporation may erect maintain furnish and equip and may remove conservatories refreshment rooms and other temporary or permanent buildings erections and conveniences in any recreation ground as may be required or convenient for the purpose thereof and for the public resorting thereto and may let any such refreshment rooms or other buildings with their appurtenances belonging to them or under their control to such person for such term not exceeding three years at any one time at such rent payable at such times and under such covenants as the Corporation may think fit.

Application of
moneys re-
ceived from
admission to
public recrea-
tion ground &c.

79. The moneys (if any) received by the Corporation under this Part of this Act shall be carried to the credit of the district fund and all expenses of the Corporation under this Part of this Act shall be paid out of that fund.

Extended de-
finition of
public place
and street for
certain pur-
poses.

80.—(1) Any place of public resort or recreation belonging to or under the control of the Corporation ; and

(2) Any unfenced ground adjoining or abutting upon any street ;

shall for the purposes of the Vagrancy Act 1824 and of any Act for the time being in force altering or amending the same be deemed to be an open and public place and shall be deemed to be a street for the purposes of section 29 of the Town Police Clauses Act 1847 and also for the purposes of so much of section 28 of that Act as relates to the following offences :—

Every person who suffers to be at large any unmuzzled ferocious dog or urges any dog or other animal to attack worry or put in fear any person or animal :

Every person who rides or drives furiously any horse or carriage or drives furiously any cattle :

Every common prostitute or night walker loitering and importuning passengers for the purpose of prostitution :

Every person who wilfully and indecently exposes his person :

Every person who publicly offers for sale or distribution or exhibits to public view any profane indecent or obscene book paper print drawing painting or representation or sings any profane or obscene song or ballad or uses any profane or obscene language :

Every person who wantonly discharges any firearm or throws or discharges any stone or other missile or makes any bonfire or throws or sets fire to any firework :

Every person who throws or lays any dirt litter or ashes or nightsoil or any carrion fish offal or rubbish on any street.

81. With respect to Ealing Common Ealing Green Haven Green Drayton Green and certain strips of waste land which under the provisions of the scheme with respect to Ealing Commons scheduled to the Metropolitan Commons Supplemental Act 1877 and an indenture of conveyance from the Ecclesiastical Commissioners for England to the local board of Ealing dated the twenty-third day of November one thousand eight hundred and seventy-eight are regulated and managed by the Corporation (and which are hereinafter collectively called "the commons") the Corporation may make byelaws for all or any of the following purposes (that is to say) :--

Byelaws
with respect
to commons.

³ For preventing the trapping of birds and the taking of the eggs or nests of birds and the chasing of animals on any part of the common ;

For preventing the turning out on the commons of any diseased cattle horse or other animal ;

For preventing the cutting or taking destroying or damaging of any trees shrubs gorse fern rushes grass or other plants on or from any parts of the commons ;

For preventing the lighting of any fire on the commons and any act which may cause or be likely to cause damage by fire to any trees shrubs gorse fern rushes grass or other plant thereon ;

For regulating the plying for hire of donkeys on the commons ;

For preventing shooting and hare or rabbit coursing and dog racing and rat worrying on the commons ;

For regulating carpet beating and clothes drying on the commons ;

A.D. 1905.

For restricting the playing of games on the commons when the ground is wet or otherwise unfit ;

For preventing any assemblage of persons which may be calculated to impede the lawful use and enjoyment by the public of the commons ;

For preventing riding or driving horses cycles motor cycles or motor cars on the commons ;

To impose penalties as prescribed by clause 5 of the said scheme for infringement of the express provisions thereof.

The power of the Corporation to make byelaws under clause 6 of the above-mentioned scheme is hereby extended to Drayton Green.

Power to make byelaws to be cumulative.

82. The power to make byelaws conferred by this Part of this Act shall be in addition and without prejudice to the power to make byelaws and regulations conferred by the above-mentioned scheme with respect to Ealing Commons or by any other Act of Parliament :

Provided that byelaws authorised to be made under this Part of this Act shall be made by the Corporation under and subject to the provisions of clause 5 of the said scheme.

PART IX.

COLLECTION OF RATES.

Appointment of collectors of rates &c.

83.—(1) From and after the twenty-fifth day of March one thousand nine hundred and six the powers of the guardians of the poor of the Brentford Union and of any and every other authority to appoint collectors of the poor rates shall cease in respect of the parish of Ealing.

(2) The Corporation shall appoint as an assistant overseer James Hogg the present collector of the poor rate for the north district of the parish of Ealing if the said James Hogg is on the said twenty-fifth day of March in the occupation of that office and shall consent to be so appointed and if so consenting he shall hold the office of assistant overseer by the same tenure and on the same terms and conditions with respect to salary pension and in every other respect as nearly as may be as those on which he held the office of collector of poor rates subject to the terms of any agreement between him and the Corporation and he shall not be liable to be removed from the office of assistant overseer by the Corporation without the consent of the Local Government Board.

(3) The said James Hogg shall on the twenty-fifth day of March one thousand nine hundred and six cease to hold office as collector of poor rates for the north district of the parish of Ealing within the meaning of article 2 of the Order of the Local Government Board addressed to the guardians of the poor of the Brentford Union and others and dated the twelfth day of November one thousand nine hundred and four.

(4) The provisions of section 120 (with the exception of subsection (8)) of the Local Government Act 1888 shall with the substitution of the "Local Government Board" for the "Treasury" and the "Corporation" for the "county council" and other necessary modifications apply to the said James Hogg if he declines to be appointed assistant overseer as aforesaid and any compensation payable by the Corporation under this subsection shall be paid out of the borough fund or moneys borrowed under this Act:

Provided that if compensation be awarded to the said James Hogg under this subsection he shall not be deemed to have become entitled to a superannuation allowance under section 2 of the Poor Law Officers' Superannuation Act 1896.

(5) In the event of any person being appointed collector of poor rates in the place of the said James Hogg or otherwise between the first day of January one thousand nine hundred and five and the said twenty-fifth day of March one thousand nine hundred and six such person shall cease to hold office as such collector on the said twenty-fifth day of March one thousand nine hundred and six.

(6) The said James Hogg if taken over by the Corporation may be required to collect the general district rate and any other rates or any electricity or other rents and charges leviable by the Corporation within the borough and shall in respect of such duties if so desired by him be paid such further remuneration (if any) as may be agreed between him and the Corporation or in case of difference may be settled by the Local Government Board or by an arbitrator appointed by them.

(7) The Poor Law Officers' Superannuation Act 1896 shall apply to the said James Hogg if appointed assistant overseer as aforesaid and to the Corporation in relation to him as nearly as may be as if the Corporation were the guardians and the borough fund were the common fund of the union.

A.D. 1905.

(8) The Corporation may appoint and remove such officers as they may deem necessary to assist the overseers of the parish of Ealing in the discharge of their duties and the salaries and expenses of such officers shall be determined by the Corporation and paid out of the poor rate. Provided that if such officers are also engaged by the Corporation the salaries and expenses of such officers shall be paid out of the poor rate and other local rates and funds in such proportions as the Corporation shall determine.

For protection of guardians of poor of Brentford Union.

84. For the protection of the guardians of the poor of the Brentford Union in the county of Middlesex (hereinafter called "the guardians") and the assessment committee of the guardians (hereinafter called "the assessment committee") the following provisions shall notwithstanding the provisions contained in the last preceding section apply and have effect (that is to say):—

- (1) The assessment committee shall be entitled to the services of the assistant overseers in the service of the Corporation in making the assessment for poor rates in the parish of Ealing to the same extent as they would be but for the passing of this Act:
- (2) The assessment committee shall have access at all reasonable times by themselves their officers or other persons duly authorised by them to all rate books valuations valuation lists or other documents in the custody of or belonging to the Corporation or their officers having reference to the assessment of property for the purposes of the poor rate within the union:
- (3) Except as expressly provided by this Act nothing therein contained shall take away prejudice lessen or affect any of the rights powers and privileges of the guardians or of the assessment committee.

Local Government Board may prescribe form of rate and demand note.

85. The Local Government Board may prescribe a form of rate to include the poor rate borough rate general district rate or other rate leviable by the Corporation or by the overseers for the parish of Ealing and they may in respect of such rates prescribe a form of demand note receipt and other necessary documents and any form so prescribed shall be sufficient in law.

PART X.

A.D. 1905.

FINANCE.

86. The Corporation may from time to time (in addition to any moneys they are now authorised to borrow) borrow at interest the sums hereinafter mentioned (that is to say):—

Power to borrow.

For the taxed costs of and incidental to the passing of this Act such sum as may be necessary for that purpose on the security of the borough fund and borough rate:

And the Council may with the approval of the Local Government Board and on the security of such funds revenues or rates as the Board approve borrow such further moneys as the Corporation may require for the purposes of this Act.

87. All moneys authorised to be borrowed by the Corporation under this Act may be borrowed on mortgage and the following sections of the Public Health Act 1875 shall extend and apply mutatis mutandis to and in relation to all mortgages made under the powers of this Act (that is to say):—

Mode of borrowing.

Section 236 (Form of mortgage);

Section 237 (Register of mortgages); and

Section 238 (Transfer of mortgages).

88.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

Inquiries by Local Government Board.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by the Board not exceeding three guineas a day for the services of such inspector.

89. The Corporation shall pay off all moneys borrowed by them under this Act within the respective periods following (that is to say):—

Periods for payment off of moneys borrowed.

As to moneys borrowed for the payment of the costs and expenses of this Act within five years from the passing of this Act:

A.D. 1905.

As to any other moneys within such periods not exceeding sixty years as may be sanctioned by the Local Government Board.

Mode of payment off of moneys borrowed.

90. The Corporation shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest or by means of a sinking fund or partly by such instalments and partly by a sinking fund.

Sinking fund.

91.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed or maintained either—

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is hereinafter called a non-accumulating sinking fund; or

(B) By payment to the fund throughout the prescribed periods of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is hereinafter called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation :

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose Provided always that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

A.D. 1905.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed period the Corporation may with the consent of that Board discontinue the annual payments to such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Corporation with the consent of the Local Government Board may determine.

Annual re-
turn to Local
Government
Board with
respect to
sinking fund.

92.—(1) The town clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the town clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

A.D. 1905.

(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

93. A person lending money to the Corporation under this Act shall not be bound to inquire as to the observance by the Corporation of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Protection of
lender from
inquiry.

94. The Corporation shall not be bound to see to the execution of any trust whether expressed implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register or books of the Corporation shall from time to time be a sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of any such loan or security or any part thereof or interest thereon not entered in their register or books and the Corporation shall not be bound to see to the application of the money paid on such receipt or be answerable or accountable for any loss misapplication or non-application of any such money.

Corporation
not to regard
trusts.

95. The Corporation may from time to time re-borrow at interest as aforesaid any money necessary for repaying any principal money borrowed under this Act and so toties quoties Provided that the time for the repayment of any moneys so re-borrowed shall not be extended beyond the unexpired portion of the term in that behalf prescribed for the repayment of the

Power to
re-borrow.

A.D. 1905. money in lieu of which such re-borrowing has been made and that for the purpose of repayment the moneys re-borrowed and the moneys originally borrowed shall be deemed the same loan :

Provided also that the power conferred by this section shall not apply to any moneys paid off by means of instalments or appropriations or of a sinking fund or out of the proceeds of the sale of lands or other property or out of fines or premiums on leases.

Application
of moneys
borrowed.

96. Moneys borrowed by the Corporation under this Act shall be applied only to the purposes for which they are respectively authorised to be borrowed and to which capital is properly applicable.

Power to use
sinking fund
instead of
borrowing.

97.—(1) Where the Corporation are authorised by any statutory borrowing power to raise money for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said money either wholly or partially by using for such purpose any money for the time being forming part of a sinking fund and set aside for the repayment of a loan—

(A) Secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security ; and

(B) Not shown by the deed to be raised in exercise of a particular borrowing power specified therein.

(2) The Corporation when exercising the powers conferred on them by this section shall—

(A) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the use of moneys from such sinking fund ;

(B) Credit such account or accounts in the sinking fund as the Corporation may determine with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund ;

(c) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from the sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security. A.D. 1905.

(3) The Corporation shall furnish all such information (if any) to the Local Government Board with regard to the exercise of the powers contained in this section as that Board shall require.

98. The Corporation may invest any moneys paid by them into any sinking fund established by them in any statutory securities. Investment of moneys paid into sinking fund.

99. Nothing in this Act shall prejudicially affect any charge upon the estate property funds rates or revenues of the Corporation by way of mortgage or otherwise subsisting at the passing of this Act and every mortgagee or person for the time being entitled to the benefit of any such charge shall have the same priority of charge (if any) and all the like rights and remedies in respect of the estate property funds rates or revenues subject to such charge as if this Act had not been passed. Saving for existing charges.

100. The Corporation may from time to time appoint and pay one or more members of the Institute of Chartered Accountants or of the Incorporated Society of Accountants to act as auditor or auditors of the accounts of the Corporation in such manner as the Corporation direct in addition to the auditors appointed under the Municipal Corporations Acts. Appointment of auditors.

101. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made may be defrayed by the Corporation out of the district fund and general district rate or other funds or revenue as the Corporation may in their discretion having regard to the object of the expenditure deem just. Expenses of execution of Act.

PART XI.

MISCELLANEOUS.

102. The provisions of section 102 (Power of entry of local authority) and section 103 (Penalty for disobedience of order) of the Public Health Act 1875 shall extend and apply to the purposes of Parts III. and IV. of this Act as if those purposes had been mentioned in the said section 102. Power of entry.

A.D. 1905.

Notice of
circus pro-
cessions to
be given.

103. Any person or persons intending to organise or form a circus procession or procession of wild animals through the streets of the borough shall give written notice thereof and of the route proposed to be taken and of the time at which it will take place to the Corporation by leaving such notice at the offices of the Corporation twenty-four hours at least (exclusive of Sunday) previous to the time fixed for such procession to pass through the streets. If any such procession passes through the streets of the borough without such notice having been previously given or otherwise than in accordance with such notice the person or persons organising or conducting such procession or any or either of them shall be liable to a penalty not exceeding five pounds each.

General pro-
vision as to
byelaws.

104. Save as otherwise expressly provided all the provisions with respect to byelaws contained in sections 182 to 185 (both inclusive) of the Public Health Act 1875 (except so much thereof as relates to byelaws of a rural sanitary authority) shall apply to all byelaws from time to time made by the Corporation under the powers of this Act.

As to breach
of conditions
of consent of
Corporation.

105. Where the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they were authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

Apportion-
ment of ex-
penses in
case of joint
owners.

106. Where under the provisions of this Act the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under this Act are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the borough surveyor or in case of dispute by a court of summary jurisdiction.

Authentica-
tion and
service of
notices &c.

107.—(1) Where any notice or demand under this Act or under any local Act Provisional Order or byelaw for the time being in force within the borough requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act

Provisional Order or byelaw for the time being in force within the borough may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

A.D. 1905.

108. Notwithstanding anything contained in section 175 of the Public Health Act 1875 any lands acquired by the Corporation in pursuance of any powers in that Act contained and not required for the purpose for which they were acquired may with the approval of and subject to such conditions as may be imposed by the Local Government Board be retained and used by the Corporation for any other purpose in like manner as if they had been originally acquired for such last-mentioned purpose.

Lands acquired for some purposes may be used for others.

109. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act. Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Saving for indictments &c.

110. Save as otherwise in this Act expressly provided all informations and complaints under and for the breach of any of the provisions of this Act or of any of the byelaws made thereunder or of the Town Police Clauses Act 1847 or of the Towns Improvement Clauses Act 1847 as incorporated with the Public Health Act 1875 or the Town Police Clauses Act 1889 may be laid and made by an officer of the Corporation authorised in that behalf or the town clerk.

Informations &c. by whom to be laid.

111. Where in any legal proceedings taken by or on behalf of the Corporation whether under this Act or under any general or local Act passed before or after this Act it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the Corporation or to prove any resolution of the Corporation or of any committee of the Corporation a certificate of such appointment authority or resolution purporting to be authenticated by the signature of the mayor or deputy mayor or the town clerk shall be *prima facie* evidence of such appointment

Evidence of appointments &c.

A.D. 1905. — authority or resolution without further proof of the holding of any meeting or the production of any minute book or other record or document.

Recovery of penalties &c.

112. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs and expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Penalties to be paid over to Corporation.

113. All penalties recovered under this Act or under any byelaws made by the Corporation thereunder on the prosecution of the Corporation shall be paid to them and be carried to the credit of the district fund or such other fund or rate as the Corporation may direct.

Compensation for damage occasioned in execution of Act.

114. Where any person sustains any damage by reason of the exercise of any of the powers of this Act in relation to any matter as to which he is not himself in default full compensation shall be made to such person by the Corporation and any dispute as to the fact of the damage or amount of compensation shall be settled by arbitration in manner provided by the Public Health Act 1875 or if the compensation claimed does not exceed the sum of twenty pounds the same may at the option of either party be ascertained by and recovered before a court of summary jurisdiction.

Compensation how to be determined.

115. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts.

Appeal to quarter sessions.

116. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence or consent or approval of or by the Corporation or of or by any officer of the Corporation or by any conviction or order made by a petty sessional court or court of summary jurisdiction under any provision of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a petty sessional court or court of summary jurisdiction the Corporation may in like manner appeal.

117. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom the offender is convicted.

A.D. 1905.

Damages
and charges
to be settled
by justices.

118. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being a member of the Corporation or liable to any rate.

Judges not
disqualified.

119. All powers rights and remedies given to the Corporation by this Act shall (except as otherwise by this Act specially provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them by the Public Health Acts or any of them or any other Act or Acts and the Corporation may exercise such other powers and be entitled to such other powers rights and remedies as if this Act had not been passed. Provided that no person shall incur more than one penalty (other than a daily penalty) for the commission of the same offence.

Powers of
Act cumu-
lative.

120. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown.

Crown
rights.

121. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act including the costs incurred by the Corporation in complying with the provisions of the Borough Funds Acts 1872 and 1903 with respect to the bill for this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation and may be paid in the first instance out of the district fund and general district rate but shall be charged to and recouped by the moneys which the Corporation are authorised to borrow under this Act for that purpose.

Costs of Act.

Printed by EYRE and SPOTTISWOODE,

FOR

ROWLAND BAILEY, Esq., M.V.O., I.S.O., the King's Printer of Acts of Parliament.

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